



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

DOT-E 12669
(SECOND REVISION)

JUL 28 2003

EXPIRATION DATE: June 30, 2005

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Sunoco Inc, (R&M)
Pittsburgh, Pennsylvania
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the loading of a Class 9 liquid into a cargo tank by personnel who do not meet all the requirements specified in § 177.834(i)(4). This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.302(c) in that the marking requirement is waived; and § 177.834(i)(4) in that loading personnel are not required to have the authority or means to move the cargo tank; and specified in
5. BASIS: This exemption is based on the application of Sunoco, Inc. (R&M) dated July 7, 2003 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Environmentally hazardous substance, liquid, n.o.s.	9	UN3082	III

7. SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is any DOT Specification or non-DOT specification cargo tank motor vehicle suitable for transport of liquids.
- b. OPERATIONAL CONTROLS - This exemption is applicable only to loading operations at the Sunoco, Inc. (R&M) facility at 200 Neville Road, Pittsburgh, Pennsylvania.
- (1) Loading personnel must remain within 25 feet of the cargo tank motor vehicle and have an unobstructed view of the loading lines and tank at all times during loading.
- (2) Loading operations must be performed at a loading rack designated as P-3, P-4 or P-5, which must be provided with a drainage system that is capable of containing the entire content of the cargo tank.
- (3) Loading personnel are exempted from the requirement of § 177.834(i)(4) in that they do not need to be authorized to move the cargo tank.

8. SPECIAL PROVISIONS:

- a. A current copy of this exemption must be maintained at the facility where the cargo tank is loaded.
- b. The marking requirement specified in § 172.302(c) is waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.10. MODAL REQUIREMENTS: This exemption imposes no additional modal requirements.

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11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:

Robert A. McGuire

fn Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

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Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: PTO/AM